

Dhananjay Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 May 2022 · WRIT - C No. 4599 of 2022 · **Writ disposed; clause 6.5 objection directed; coercive action stayed eight weeks.**

HEADNOTE

A writ challenging an OTS recovery notice was disposed of without examining merits. The petitioner was given liberty to file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks; if filed, it is to be decided in accordance with law within the next four weeks after hearing. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner challenged an OTS recovery notice dated 15 December 2021 issued by the Sub Divisional Officer, Purvanchal Vidyut Vitran, Bamrauli, District Prayagraj, and sought a mandamus restraining further harassment. Counsel for the distribution licensee stated on instructions that the petitioner could object to the demand and that the objection would be decided in a time-bound manner. The Division Bench disposed of the writ on that statement.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to disputed demand before Executive Engineer

HOLDING

Without expressing any opinion on merits, a writ challenging an OTS recovery notice is disposed of with liberty to submit an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks; if so submitted, the Executive Engineer shall decide it in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against an OTS recovery notice was not decided on merits; the petitioner was relegated to a time-bound clause 6.5 objection before the Executive Engineer, with interim protection against coercive recovery. ¶ 3-5

clause-6.5-representation-executive-engineer The Court directed that the paragraph 6.5 objection be filed before the Executive Engineer concerned and decided by him after hearing. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE OTS RECOVERY NOTICE DATED 15.12.2021

The Court expressly declined to examine the merits of the petitioner's challenge to the demand. ¶ 4